

Court No. - 3

Case :- WRIT - C No. - 31133 of 2023

Petitioner :- Sri Radhey Shaym

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Awadhesh Kumar Mishra

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Upon a call given by High Court Bar Association, Allahabad,
lawyers are abstaining from work.

Learned Standing Counsel is present.

Put up this case as fresh on 28.9.2023.

Order Date :- 13.9.2023

P.S.Parihar

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Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

On the request of learned counsel for the petitioner for amending the writ petition, the case is passed over for the day.

Put up this case on 12.10.2023 as fresh.

Order Date :- 10.10.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

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Hon'ble Manoj Bajaj,J.

Civil Misc. Amendment Application No. 2 of 2023

Amendment application is **allowed**.

Learned counsel for the petitioner may incorporate the amendment within 48 hours.

Order on petition

Put up this case on 16.10.2023 as fresh.

Order Date :- 12.10.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

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Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Place this petition as fresh on 19.10.2023.

Order Date :- 16.10.2023

PK

(Manoj Bajaj,J.) (Siddhartha Varma,J.)

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Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

1. Petitioner was given a provisional assessment dated 09.01.2023 on the basis of an inspection dated 12.01.2023. The petitioner thereafter replied on 25.01.2023. The reply was supplemented by another reply and thereafter a final assessment order was passed on 19.06.2023. Learned counsel for the petitioner states that the order was a non-speaking order and had not considered the reply of the petitioner. He also states that there was no compliance of the provision of Clause 6.8(c)(i) of the Electricity Supply Code, 2005.

2. Learned counsel appearing for the Electricity Department, Sri Vinayak Ranjan, Advocate holding brief of the Sri Kartikeya Saran does not dispute this fact.

3. Under such circumstances, we quash the final assessment order dated 19.06.2023 and remand the matter back to the Executive Engineer. While taking decision the reply of the petitioner shall be considered. A fresh order of final assessment shall thereafter be passed.

4. Since the final assessment order has been quashed, we also quash the recovery citation dated 19.08.2023.

5. With these observations, the writ petition is accordingly, **allowed**.

Order Date :- 19.10.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

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Hon'ble Manoj Bajaj,J.

Civil Misc. Correction Application No.3 of 2023 :

Heard learned counsel for the parties.

In the order dated 19.10.2023, following corrections are being made :-

(i) In the first line of the first paragraph, the dated "09.01.2023" shall now be read as "**12.01.2023**";

(ii) In the second line of first paragraph, the date "12.01.2023" shall now be read as "**09.01.2023**"; and

(iii) In the fourth line of first paragraph and in the first line of third paragraph, the date "19.06.2023" shall now be read as "**15.06.2023**".

The application is, accordingly, allowed.

Order Date :- 30.10.2023

GS

(Manoj Bajaj, J.)

(Siddhartha Varma, J.)